SUSE Volume License Agreement

SUSE

Volume License Agreement

NOTICE: IF YOU ARE ACCEPTING THIS AGREEMENT ON BEHALF OF A COMPANY, YOU REPRESENT AND WARRANT THAT YOU HAVE THE LEGAL AUTHORITY TO BIND THE COMPANY TO THIS AGREEMENT, AND THAT YOU HAVE READ AND UNDERSTOOD THIS AGREEMENT. IF YOU DO NOT HAVE SUCH AUTHORITY, OR IF YOU OR THE COMPANY DOES NOT AGREE WITH THE TERMS OF THIS AGREEMENT, YOU SHOULD NOT ACCEPT IT OR ORDER AGAINST IT.

1. Contracting Entities and Formation

1.1 Contracting Entities

"Customer" or "You"
The entity that accepted the terms of this VLA online or placed an order to SUSE against the Transaction Document to which this VLA is attached

"SUSE" means the legal entity with its SUSE business unit named below depending on Customer's region/country		
Customer Location	**SUSE Entity**	**Notices**
Americas (except Canada) and Asia-Pacific (except India and Japan)	SUSE LLC	Post: Attention Contract Admin Team, 1221 S Valley Grove Way #500, Pleasant Grove, UT 84062, Email at: contractadmin@suse.com
Canada	SUSE Software Solutions Canada ULC	
India	SUSE Software Solutions India Private Ltd	
Japan	SUSE Software Solutions Japan KK	
Europe, the Middle-East, Africa (EMEA)	SUSE Software Solutions Ireland Ltd	Post: Attention: Contract Admin Team, One Spencer Dock, North Wall Quay, Dublin 1, Ireland, Email: emea_contract_admin@suse.com

1.2 Customer as a Distributor or Reseller. If Customer is a distributor authorized by SUSE to resell the SUSE Offerings to a reseller, Customer must include in its contract with each reseller: (i) compliance with the terms of this VLA by the reseller as a condition of the resellers purchase; (ii) an obligation on the reseller to ensure that compliance with the terms of this VLA is included as a condition in its sale contracts with End Customers; and (iii) ensure that the condition in (i) and (ii) is in each case expressed as being for the benefit of SUSE and directly enforceable by SUSE. If Customer is authorized by SUSE to resell the SUSE Offerings directly to End Customers, Customer must include in its contract with each End Customer compliance with the terms of this VLA by the End Customer as a condition of the that customer's purchase and ensure that condition is expressed as being for the benefit of SUSE and directly enforceable by SUSE. Nothing in this Section authorizes Customer to disclose pricing information, which is at all times SUSE's Confidential Information. Customer must upon written request from SUSE, provide written evidence to SUSE that any such reseller or End Customer, as applicable, purchasing SUSE Offerings purchased by Customer under this VLA has agreed to be bound by the terms of this VLA. As incorporated into the purchase contract with a reseller or an End Customer, an obligation expressed in this VLA as being that of the Customer shall be deemed to be that of the reseller or End Customer.

1.3 Formation. The Agreement is effective between Customer and SUSE as of: (i) the date of its final signature by both parties; (ii) the date the Customer accepts the online Subscription Terms into which this VLA is incorporated; or (iii) the date an order is placed to SUSE against the Transaction Document referencing the Subscription Terms into which this VLA is incorporated, whichever is earliest (the "**Effective Date**").

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2. **Purpose.** This Volume License Agreement ("**VLA**") and its schedules describe the terms and conditions under which Customer may access and receive the benefit of, SUSE Offerings for its own internal use and benefit. These terms do not apply to, and do not allow, any other use of SUSE Products or services, including without limitation, the sale or distribution of SUSE products on a standalone basis, the integration of Customer's products with SUSE's or the provision of services using SUSE Products or services.

3. **Structure**

3.1 This VLA comprises the following components:

3.2 these terms and conditions that apply to any use of the SUSE Offerings and SUSE Products;

3.3 Schedule 1 - Payment Metrics, Reporting and Invoicing;

3.4 Schedule 2 - Usage Rights;

3.5 Schedule 3 - Product Specific Terms; and

3.6 the SUSE Subscription Terms, which describe the support services provided by SUSE, as available at https://www.suse.com/products/subscription_terms.pdf from time to time (the "**Subscription Terms**"), the terms of which are incorporated into this VLA; and

3.7 the SUSE Professional Services Terms, which describe the terms on which SUSE may provide professional services to the Customer, as available at https://www.suse.com/licensing/eula/download/suse_professional_services_addendum.pdf, the terms of which are incorporated into this VLA ("**PSA**");

3.8 the SUSE End User License Agreement, as available at https://www.suse.com/licensing/eula/download/suse_end_user_license_agreement_february_2024.pdf ("**EULA**").

3.9 If there is a conflict between the terms of any constituent part of the Agreement, the following order of precedence will apply: (1) the Transaction Document; (2) the schedules to this VLA, in the order they are attached to this VLA; and (3) the terms and conditions of this VLA.

3.10 Additional terms apply to the use of Subscription Offerings for specific SUSE Products, as specified in Schedule 3 (the "**Product Specific Terms**").

4. **Affiliates.** A Customer Affiliate may access and use the SUSE Offerings only as follows:

4.1 **Participation Agreement:** A SUSE entity agrees to enter into a Participation Agreement with a Customer Affiliate under which that Customer Affiliate may purchase SUSE Offerings. The Participation Agreement will be an independent contract between Customer's Affiliate and the relevant SUSE entity, which is subject to the terms of this VLA; or

4.2 **Customer as a managing or procurement entity.** Customer may purchase SUSE Offerings and deploy SUSE Products on behalf of the Customer Affiliate, in which case: (a) Customer is responsible for compliance with this VLA and the payment of all Fees for the use by its Affiliates; (b) Customer agrees that SUSE will deliver the SUSE Product to Customer in the Territory (not to the Customer Affiliate) and (c) Customer remains responsible for the onwards provision of the SUSE Products and services to its Affiliates, and indemnifies SUSE against any taxes associated with such onwards provision.

5. **Ordering SUSE Products and Subscription Offerings.** The SUSE Offerings to be provided by SUSE will be as specified in a Transaction Document. Subscription fees are calculated on an annual basis, and all Fees are due and payable in advance. You must place an order for the appropriate renewal SUSE Subscription Offerings, with SUSE or a reseller, as applicable, prior to the expiration date of Your then-current Subscription Offerings.

6. **SUSE Services Offerings.** You may order services, such as Consulting Services or Training Services, via a Transaction Document as mutually agreed upon.

7. **Individual Agreement.** This VLA governs the purchase of the SUSE Offerings specified in the Transaction Document into which this VLA is incorporated. The Transaction Document incorporates the terms of this VLA, together with attached schedules, and any amendments entered into between the Parties in writing (together, the "**Agreement**"). The pricing applicable to those purchases (and period of validity and/or quantities for that pricing, if any), is as specified in the Transaction Document and applies only to that purchase. As incorporated into a Transaction Document, a reference in this VLA to the "Agreement" means a reference to that Transaction Document only.

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8. **Licensing.** The SUSE Products are licensed under the EULA, the terms of which are incorporated into this VLA.

9. **Usage Rights with respect to Support Services.** Customer may use the SUSE Offerings and SUSE Products, in the Territory and during the term of a Subscription Offering purchased under this VLA for Internal Use, solely as permitted by Schedule 2 (Usage Rights), as may be amended or replaced in a Transaction Document. The rights set out in this Section and in Schedule 2 (Usage Rights) (or in a Transaction Document, as applicable) are the "**Usage Rights**".

10. **No-Redistribution.** Customer must not use or distribute the SUSE Offerings or SUSE Products. Without limiting the foregoing, except where Customer is authorised as a distributor or reseller under a separate agreement, Customer must not: (i) sell, resell or otherwise distribute SUSE software, SUSE Products or SUSE Offerings on a stand-alone basis; or (ii) distribute or make available the benefits of the SUSE Offerings (including without limitation, access to support, maintenance and/or Updates) to third parties on a standalone basis, or otherwise provide access to the SUSE Offerings to third parties, in each case for the third party's benefit. Customer may permit a third party provider of outsourced information technology services to access and use the SUSE Offerings solely to the extent necessary to perform its contractual obligations to Customer, provided that: (a) the third party is bound by the terms of this Agreement in respect of such use and access; and (b) Customer remains responsible for the acts and omissions of the third party with respect to such use and access.

11. **Customer Responsibilities.**

11.1 **Testing.** Customer is responsible for testing the SUSE Products, Updates, patches and any other software or process obtained from SUSE, before: (i) deploying them in the Customer's production environment; (ii) using them to process live data; or (iii) incorporating them into processes that could impact Customer business or data subjects.

11.2 **Security and Back up.** Customer acknowledges and agrees that whilst SUSE Products and/or SUSE Offerings may contain features designed to improve the overall security of the Customer's environment, the Customer is solely responsible for implementing, and shall implement, appropriate measures to protect the security, integrity and accuracy of its systems and data. Without limiting the foregoing, Customer must (i) back up Customer's data and systems on a regular basis, and make those backups available to SUSE if needed for support purposes; (ii) implement business continuity and disaster recovery measures; and (iii) implement physical and logical access controls, firewalls, malicious code scanning and detection measures, intrusion detection systems and regular security patches, in addition to SUSE Products and SUSE Offerings, in each case, in accordance with industry practice for the Customer's business and as appropriate having regard to the Customer's risk. If Customer sustains a data loss and/or system outage, Customer is solely responsible for recovering and restoring its systems and data. SUSE Support does not include data migration or data recovery support or remote access by SUSE personnel to Customer's network and/or systems; Where SUSE personnel will access Customer systems and data, Customer must implement appropriate industry standard safeguards in accordance with least privilege principles.

11.3 **Applying Updates.** Customer must apply Updates provided by SUSE as soon as possible after SUSE makes them available to Customer.

12. **Fees and Payment**

12.1 **Payment terms**. Fees are as set out in a Transaction Document (or are based on a SUSE buying program that is referred to in the Transaction Document) and are calculated in accordance with the pricing metrics specified in Schedule 1 (Payment Metrics, Reporting and Invoicing). SUSE will invoice Customer at the frequency specified in Schedule 1 (Payment Metrics, Reporting and Invoicing). Customer will pay fees, except those disputed in good faith, within the timeframe specified in Schedule 1 (Payment Metrics, Reporting and Invoicing). If any of the provisions of Schedule 1 (Payment Metrics, Reporting and Invoicing) are replaced in a Transaction Document, the version of Schedule 1 in that Transaction Document will prevail. Invoices not paid when due under the Agreement, will accrue interest from the date due to the date fully paid at the lesser of the rate of 1% per month and the highest rate allowed by applicable law. Fees are non-refundable unless You terminate for uncured material breach pursuant to Section 22.3, in which case SUSE will provide a pro-rata refund of any pre-paid Fees in respect of the time period that follows the effective date of termination.

12.2 **Taxes.** All fees are exclusive of all applicable taxes. Customer will pay and bear the liability for taxes associated with activities under this VLA and any Schedule(s), including sales, use, excise, and added value taxes but excluding taxes based upon SUSE's net income, capital, or gross receipts. If Customer is required to withhold tax as required by law: (i) this will be subject to the application of any reduced rate allowed in an income tax treaty; (ii) Customer will request all documentation required for the reduction of withholding tax; and (iii) Customer will provide to SUSE a valid government receipt documenting the withholding or deduction as applicable. If SUSE is required by law to remit any tax or duty on Customer's behalf or for Customer's account upon delivery, Customer agrees to reimburse SUSE within thirty (30) days after SUSE

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notifies Customer in writing of such remittance. Should Customer determine that the supply should be exempt from transaction taxes, Customer will provide SUSE with valid tax exemption certificates in advance of placing an order where such certificates are applicable. Except as expressly otherwise agreed in writing, all payments are non-refundable..

13. **Records and Verification.** During the term of this VLA and for two years afterward, Customer must keep complete and accurate records of all copying and use of SUSE Products and SUSE Offerings. During this period, SUSE has the right to verify Customer's compliance with the Agreement. Customer agrees to: (a) implement internal safeguards to prevent any unauthorized copying, distribution, installation, or use of, or access to, the SUSE Products and/or SUSE Offerings; (b) keep records sufficient to demonstrate compliance with the Agreement (all such records being the "**Records**"). Within 30 days after SUSE's written request, Customer will allow a SUSE representative (which may be SUSE personnel or an independent auditor) (each an "**Auditor**") to inspect the Records either remotely or on Customer's premises, and the systems (or portions of those systems) to which those Records relate, in each case, only to the extent necessary to enable SUSE to verify compliance with the Agreement. SUSE's rights under this Section are subject to the following conditions: (i) the Auditor must be bound by a confidentiality agreement which contains confidentiality obligations equivalent to those in this VLA; (ii) the Auditor will comply with Customer's reasonable security and physical safety procedures whilst on Customer premises; and (iii) the Auditor will not be entitled to access any system or data that does not concern Customer's deployment of SUSE Products or access to SUSE Offerings. If an audit or information available to SUSE reveals that Customer has not complied with its obligations under this VLA and this has resulted in an under-payment to SUSE, SUSE may invoice Customer for the value of the required Subscription Offerings at the then-current full list price, together with late payment interest calculated at the rate of 8% per annum, without benefit of any otherwise applicable discount in respect of the period reflecting the duration of the shortfall. Customer will pay such invoice within the payment terms specified in Schedule 1 (Payment Metrics, Reporting and Invoicing). Information obtained or disclosed pursuant to this Section is Confidential Information subject to the obligations of confidentiality set out in Section 21, except that SUSE may use and disclose such information to the extent necessary to enforce its rights under the Agreement.

14. **Technical Usage Data.** SUSE collects and generates technical usage data relating to Customer's deployments of SUSE Products, including error logs, network architectures, usage patterns, update status and the systems on which the SUSE Products are deployed, but in each case, excluding personal data (together, the "**Technical Usage Data**"). SUSE may collect Technical Usage Data: (a) by way of Customer's use of certain SUSE Products, where such SUSE Products collect the Technical Usage Data; (b) by requiring Customer to install or use a tool that captures the Technical Usage Data and provide that Technical Usage Data to SUSE; or (c) by way of Customer's registration of its deployments in the SUSE Customer Centre. As a condition of Customer's use of and access to the SUSE Offerings, Customer agrees that SUSE may collect and generate Technical Usage Data as described in this Section and that SUSE may use, store, analyze, and aggregate the Technical Usage Data solely for the purpose of: (i) performing its obligations under the Agreement; (ii) improving the services SUSE provides to customers; (iii) developing new products and services for customers; and (iv) monitoring Customer's and/or the End User's compliance with the applicable contractual terms. SUSE warrants that Technical Usage Data does not include personal data or personally identifiable information. To the extent Technical Usage Data contains information that identifies the Customer its End Users or otherwise contains Customers Confidential Information, the obligations of confidentiality set out in Section 21 shall apply. Customer represents and warrants that it has obtained all necessary consents and permissions required to enable it to grant the permissions set out in this Section 14.

15. **Intellectual Property.** No title to or ownership of the intellectual and industrial property rights related to the SUSE Products and/or any SUSE Offerings is transferred to the Customer, or otherwise acquired by the Customer, under this VLA.

16. **SUSE Representations and Warranties.** SUSE warrants that: (a) it has the authority to enter into the Agreement; (b) in the provision of the SUSE Offerings, SUSE will comply with laws applicable to SUSE as the provider of the SUSE Offerings; and (c) it will perform its obligations under the Agreement with reasonable skill and care. EXCEPT AS OTHERWISE RESTRICTED BY LAW, SUSE, ON BEHALF OF ITSELF AND ITS AFFILIATES AND AGENTS (COLLECTIVELY "**THIRD PARTIES**"), DISCLAIMS AND EXCLUDES ANY AND ALL IMPLIED WARRANTIES INCLUDING ANY WARRANTIES OF MERCHANTABILITY, TITLE, NON-INFRINGEMENT, OR FITNESS FOR A PARTICULAR PURPOSE. SUSE AND THIRD PARTIES MAKE NO WARRANTY, REPRESENTATION OR PROMISE NOT EXPRESSLY SET FORTH IN THE AGREEMENT. NEITHER SUSE NOR ITS THIRD PARTIES WARRANT THAT: (1) THE SUSE PRODUCTS, SOFTWARE OR SERVICES WILL SATISFY CUSTOMER'S OR END USERS' REQUIREMENTS; (2) THAT THE OPERATION OF THE SUSE PRODUCTS AND SOFTWARE WILL BE UNINTERRUPTED OR ERROR FREE; OR (3) USE OF THE SUSE PRODUCTS, SUSE OFFERINGS OR SOFTWARE WILL PREVENT, DETECT OR

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REMEDY ALL NETWORK INTRUSIONS AND SECURITY VULNERABILITIES. SUSE AND THIRD PARTIES RESERVE ALL RIGHTS NOT EXPRESSLY GRANTED HEREIN AND GRANT NO ADDITIONAL RIGHTS, LICENSES OR COVENANTS BY IMPLICATION, ESTOPPEL, OR OTHERWISE.

17. **Customer Warranties.** Customer warrants that: (a) Customer has the authority to enter into the Agreement, and (b) Customer's use of the SUSE Products and SUSE Offerings will comply with the laws applicable to Customer.

18. **Liability**

18.1 **DISCLAIMER OF DAMAGES.** NEITHER PARTY, NOR ITS AFFILIATES, WILL BE LIABLE FOR (A) LOSS OF REVENUES, LOSS OF (OR DIMINUTION IN) PROFITS, LOSS OF GOODWILL, OR LOSS OR CORRUPTION OF DATA, IN EACH CASE WHETHER DIRECT OR INDIRECT; OR (B) ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL EXEMPLARY OR PUNITIVE DAMAGES OF ANY KIND, IN EACH CASE, WHETHER ARISING UNDER ANY LEGAL OR EQUITABLE THEORY OR ARISING UNDER OR IN CONNECTION WITH THIS AGREEMENT.

18.2 **AGREEMENT LIABILITY CAP.** THE AGGREGATE LIABILITY OF EACH PARTY AND ITS AFFILIATES WITH RESPECT TO ALL CLAIMS RELATING TO OR ARISING OUT OF EACH AGREEMENT, INCLUDING ALL PARTICIPATION AGREEMENTS INCORPORATING THE AGREEMENT, SHALL BE LIMITED TO: (1) IN THE CASE OF CLAIMS CONCERNING A SUSE OFFERING, THE GREATER OF: (A) THE AMOUNTS RECEIVED BY SUSE IN RESPECT OF THE RELEVANT SUSE OFFERING IN THE TWELVE (12) MONTHS PRECEDING THE FIRST INCIDENT GIVING RISE TO THE FIRST CLAIM UNDER THE AGREEMENT INCLUDING ANY PARTICIPATION AGREEMENT INCORPORATING IT; AND (B) FIVE THOUSAND U.S DOLLARS (USD 5,000); AND (2) FOR ALL OTHER CLAIMS, FIVE THOUSAND U.S DOLLARS (USD 5,000).

18.3 **MITIGATION & EXCUSE.** EACH PARTY SHALL MITIGATE ALL LOSSES THAT IT SEEKS TO RECOVER UNDER OR IN CONNECTION WITH THIS AGREEMENT. SUSE SHALL NOT BE LIABLE TO CUSTOMER FOR LOSS OR DAMAGE RESULTING FROM, OR TO THE EXTENT INCREASED BY, CUSTOMER'S BREACH OF ITS OBLIGATIONS UNDER THIS AGREEMENT.

18.4 **EXCLUSIONS FROM LIMITATIONS.** NOTWITHSTANDING ANY OTHER PROVISION OF THIS AGREEMENT OR ANY SCHEDULE, NOTHING IN THIS AGREEMENT LIMIT OR EXCLUDES LIABILITY FOR THE FOLLOWING: (A) DEATH OR PERSONAL INJURY CAUSED BY ITS NEGLIGENCE; (B) FRAUD OR FRAUDULENT MISREPRESENTATION; (C) ANY OTHER LIABILITY THAT CANNOT BE LAWFULLY EXCLUDED OR LIMITED; OR (D) CUSTOMER'S OBLIGATION TO MAKE PAYMENT OF FEES DUE AND PAYABLE UNDER THIS AGREEMENT.

19. **SUSE Indemnification.**

19.1 **Indemnity.** SUSE will indemnify You from and against damages, costs and expenses (including reasonable attorneys' fees) finally awarded against You (or approved by SUSE in a settlement) in favour of a third party, resulting from a claim by that third party alleging that the SUSE Offerings infringe the trademarks or copyrights of such third party (the "**IP Owner**"). In order to benefit from the indemnity in this Section, You must notify SUSE promptly, but no later than ten (10) days of receipt of the claim, give SUSE control of the defense and related settlement negotiations, and provide SUSE with the reasonable assistance (at SUSE's cost) in defending the claim. You will make best efforts to mitigate any losses and consequences of an infringement to the extent possible.

19.2 **Repair and Replace**. If a SUSE Offering is held to infringe and its use is prohibited or if, in SUSE's reasonable opinion, is likely to become the subject of an infringement claim, You will permit SUSE, at SUSE's option and expense, to (a) procure for you the right to continue to use the SUSE Offering, or (b) replace or modify it so that it becomes non-infringing and has the same or additional functionality and comparable or improved performance characteristics, provided that if the measures at (a) and/or (b) are not available on a basis that SUSE finds commercially reasonable, SUSE may terminate the applicable SUSE Offering without further liability under this VLA and, upon Your discontinued use of the infringing SUSE Offering, refund to You the amount paid for the unused portion of the term of the SUSE Offering as of the effective date of said termination.

19.3 **Exceptions to SUSE's Indemnification Obligation.** SUSE will have no obligation of defense or indemnity: (a) if at any time You were in breach of this Agreement; (b) in respect of any claim arising after Your last active Subscription Offering has expired; or (c) to the extent the infringement claim arises from: (i) Your designs, specifications or instructions; (ii) use of a version other than the current release of the SUSE Products, if the infringement would have been avoided by use of the current release; (iii) Your failure to promptly implement a patch provided by SUSE, if the infringement would have been avoided by use of that patch; (iv) a modification of the SUSE Offering and/or SUSE Product not requested or authorized in writing by SUSE; (v) use of the SUSE Product and/or a SUSE Offering with non-SUSE software, equipment, or data, other than as specified or approved by SUSE in writing; (vi) the furnishing to You of any information, service, or technical support by a third party; or (vii) the incorporation of the SUSE Product or SUSE Offering into Customer's products or services; or (viii) Your use of the SUSE Product, SUSE Offering otherwise than for Internal Use.

19.4 **Sole Remedy.** This Section 19 states the sole remedy of Customer and exclusive obligation of SUSE regarding any claim of infringement or misappropriation of any third party's intellectual property rights.

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20. **Customer Indemnification:** Customer will indemnify SUSE from and against damages, costs and expenses (including reasonable attorneys' fees) incurred by SUSE or its Affiliates arising from a claim by any third party resulting from Customer's distribution of the SUSE Offerings or Customer's provision of services using or incorporating the SUSE Offerings or SUSE Products. The indemnity in this Section will not apply to claims against SUSE brought by the IP Owner in respect of which SUSE is required to indemnify Customer under Section 19.

21. **Confidentiality.** "**Confidential Information**" means the terms of this VLA, the Agreement and any other information that:(i) if disclosed in tangible form, is marked in writing as confidential, (ii) if disclosed orally or visually, is designated orally at the time of disclosure as "confidential", (iii) pricing information; or (iv) by the nature of the information or the circumstances surrounding its disclosure, would reasonably be considered confidential. Confidential Information will not include information (a) already in the receiving party's possession without obligation of confidence; (b) independently developed by the receiving party; (c) that becomes available to the general public without breach of this VLA; (d) rightfully received by the receiving party from a third party without obligation of confidence; (e) released for disclosure by the disclosing party with its written consent; and (f) licensed under an open source license (as defined by the Open Source Initiative (https://opensource.org/)). The receiving party of Confidential Information will hold and maintain such Confidential Information in confidence and use at least the same degree of care to protect it that it uses to protect its own confidential information, but in no event less than reasonable care. The receiving party may disclose Confidential Information only to its employees or agents with a need to know such information and will inform such employees and agents by way of policy or agreement that they are bound by confidentiality obligations. These confidentiality obligations will survive three (3) years after expiration or termination of this VLA. The obligations in this section will not apply to information to the extent that information is required to be disclosed by law, regulation, or court order.

22. **Term and Termination**

22.1 **Term of the VLA**. This VLA will become effective on the Effective Date and will remain in effect for one (1) year (the "**Term**"), subject to earlier termination as stated below.

22.2 **Term of a SUSE Offering.** The term of a SUSE Offering begins on the date specified in the Transaction Document and continues for the term stated in the Transaction Document. Subscription Offerings will automatically renew for successive terms of one (1) year each, unless either party gives written notice to the other of its intention not to renew at least ninety (90) days before the commencement of the next renewal term.

22.3 **Termination for Cause.** Either Party may terminate this VLA, the Agreement, a SUSE Offering or any Transaction Document, in whole or in part, by notice to the other party if: (i) the other party irremediably breaches the Agreement; or (ii) materially breaches the Agreement and does not cure the breach within thirty (30) days after written notice. Without limiting the foregoing, SUSE may suspend performance of its obligations and/or terminate the Agreement, a SUSE Offering or any Transaction Document, in whole or in part, if Customer fails to meet its payment obligations and this failure continues for ten (10) days following receipt of written notice from SUSE.

22.4 **Effect of Termination**. Termination of this VLA will not affect any pre-termination obligations of either party under the Agreement. The provisions of the Agreement that by their nature extend beyond the expiration date or other termination of the Agreement will survive and remain in effect until all obligations are satisfied.

22.5 **Effect of Termination on Usage Rights**. If SUSE terminates the Agreement for cause pursuant to Section 23.2, all Usage Rights in respect of all SUSE Offerings will terminate on the effective date of termination. If this VLA is terminated for any other reason or expires, or the last active Subscription Offering purchased under this VLA expires, the duration of Usage Rights following such termination or expiry are as set out in Schedule 2 (Usage Rights).

22.6 **Survival.** The provisions of this VLA which by their nature extend beyond termination will survive termination or expiration of this VLA.

23. **Governing Law and Jurisdiction.**

23.1 **Generally.** Except as specified in Sections 23.2 and 23.3: (1) this VLA is governed by, construed in accordance with, and enforced under the substantive law of the State of New York, USA, without giving effect to any contrary choice of law or conflict of law provision or rule (whether of the State of New York or other jurisdiction); and (2) any dispute, claim, action, or proceeding arising out of or relating to the Agreement ("**Proceeding**") may only be brought before a federal or state court of appropriate jurisdiction in New York. In any Proceeding, each of the parties irrevocably waives the right to trial by jury.

23.2 **UK, EU, EFTA.** If Customer's country of principal residence is the United Kingdom, or a member state of the European Union or the European Free Trade Association, (1) this VLA is governed by and construed in accordance with the laws of England and Wales; and (2) any Proceeding will be submitted to the exclusive jurisdiction of the courts of England and Wales .

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23.3 **People's Republic of China.** If Customer's country of principal residence is in the People's Republic of China, this VLA is governed by and construed in accordance with the law of the People's Republic of China. Where any dispute arises out of or in relation to this VLA, SUSE or Customer will give notice in writing of the dispute to the other party, setting out the material particulars of the dispute and the parties must act in good faith to try to resolve the dispute quickly. Any dispute not resolved between the parties within thirty (30) days of such notice will be referred by either party to, and finally resolved by, arbitration in China in accordance with the then current Arbitration Rules of the China International Economic and Trade Arbitration Commission ("**CIETAC**"), which rules are deemed to be incorporated by reference in this Section 21.3. Each arbitration will be conducted by one arbitrator (selected by agreement between the parties, or failing agreement, in accordance with the CIETAC Rules). Arbitration will be conducted in the Chinese language and in confidence. The parties agree to comply with any arbitration award or order made pursuant to such arbitration and such award or order will be final and binding on the parties.

24. Compliance

24.1 **Privacy & Security.** Each party will comply with all privacy and security laws applicable to its business. Without limiting this, SUSE's privacy policy (https://www.suse.com/company/legal/) applies to Customer's use of the SUSE Offerings. SUSE's data processing addendum available at https://www.suse.com/contracts/SUSE-Data-Processing-Addendum.pdf applies to the extent that SUSE acts as a processor on behalf of Customer when performing Services under this VLA.

24.2 **Export Compliance.** Any products or technical information provided under this VLA may be subject to U.S. export controls and the trade laws of other countries. The parties agree to comply with all applicable export control regulations and to obtain any required licenses or item classification to export, re-export or import deliverables. The parties agree not to export or re-export to entities on the current U.S. export exclusion lists or to any embargoed or terrorist supporting countries as specified in the Export Administration Regulations (EAR). The parties will not use deliverables for prohibited nuclear, missile, or chemical biological weaponry end uses as specified in the EAR. Please consult the Bureau of Industry and Security web page: www.bis.doc.gov before exporting or re-exporting items subject to the EAR. Refer to: www.suse.com/company/legal/ for more information on exporting SUSE Products. Upon request, SUSE can provide information regarding applicable export restrictions. However, SUSE assumes no responsibility for Customer's failure to obtain any necessary export approvals.

24.3 **Anti-Corruption Laws.** Each party and its Affiliates and any other persons performing any activities related to this VLA, will comply with all applicable anti-corruption laws and regulations, such as the U.S. Foreign Corrupt Practices Act and the U.K. Bribery Act, and will not engage in conduct that would cause the other party to violate any law or regulation including anti-corruption Laws. Neither party nor its officers, employees, agents or subcontractors will offer, promise, give, request, accept or agree to accept from any person (whether for themselves or on behalf of another) any advantage, gift, payment, consideration or benefit of any kind that is intended to influence a decision or gain advantage or that otherwise constitutes a bribe and/or an illegal or corrupt practice under the applicable laws of any country, either directly or indirectly in connection with this VLA or the business of SUSE ("**the Anti-Corruption Obligation**"). Each party will disclose in writing to the other details of any breach or alleged breach of the Anti-Corruption Obligation. A party may terminate this VLA immediately upon written notice to the other in the event of a breach or suspected breach of the Anti-Corruption Obligation by the other party.

24.4 **SUSE Policies.** You agree that your access to and use of the Subscription Offerings will be subject to, and You agree to at all times comply with, the SUSE policies available at https://www.suse.com/company/legal/ as updated from time to time.

24.5 **SUSE Trade Marks.** Customer will not alter, erase or overprint any notice provided by SUSE and not to attach any additional trademarks without the prior written consent of SUSE or to affix any SUSE Marks to any non-SUSE product. Customer recognizes SUSE's ownership and title to the trade names and Marks and the goodwill attaching to the trade names and Marks. Any goodwill which accrues because of its use of the trade names and/or Marks will become SUSE's property. Customer will not: (i) apply for registration of any SUSE Marks or trade names without SUSE's prior written consent; or (ii) use, employ or attempt to register any trademarks, trade names, or domain names that are confusingly similar to SUSE's Marks or trade names.

25. Miscellaneous.

25.1 **Delivery.** SUSE software and keys will be delivered to Customer in binary (electronic) format through electronic software distribution. For a SUSE Product that you obtain directly from SUSE or indirectly from SUSE, all rights, title, and interest (including beneficial ownership and the risk of loss) of the copy of the keys and such SUSE Product shall be deemed to transfer to Customer at the location of download and completed installation onto the end-user's device used to access the key and SUSE Product.

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25.2 **Superior Agreement.** The Agreement comprises the whole agreement between the parties and supersedes all prior oral and written representations or agreements between the parties relating to the subject matter contained herein. The Agreement will not be supplemented or modified, including by any course of dealing or usage of trade or any terms in a Customer's purchase order, except as documented in a written document signed by each party, or as set out in a Transaction Document.

25.3 **Severability/Waiver.** If a provision is invalid or unenforceable, the remaining provisions will remain in effect and the parties will amend the Agreement to reflect the original agreement to the maximum extent possible. No waiver of any contractual right will be effective unless in writing by an authorized representative of the waiving party. No waiver of a right arising from any breach or failure to perform will be deemed a waiver of any future right.

25.4 **Transfer and Assignment.** The Agreement may not be transferred or assigned without the prior written approval of the other party; any other transfer or assignment or attempted transfer or assignment will be null and void.

25.5 **Force Majeure.** Neither party will be liable for delay or failure to perform that arises out of causes beyond the reasonable control and without the fault or negligence of such party. A party will give prompt notice of any condition likely to cause any delay or default. Upon the occurrence of any of the foregoing, the date of performance will be deferred for a period of time equal to the time lost by reason of the delay. This Section 25.5 does not relieve either party of its obligation(s) to make payments.

25.6 **Changes to this VLA.** From time-to-time SUSE may make changes to this VLA including changes to the Subscription Terms and the Subscription Offerings as set out in the SUSE Subscription Terms. If Your Subscription Offerings are renewed or You acquire new Subscription Offerings, You agree that the most recent version of this VLA (including changes to SUSE Offerings set out in the SUSE Subscription Terms) governs all of your SUSE Offerings prospectively.

25.7 **Notices.** Notices given under this VLA must be in writing. Notices to SUSE will be sent by email and post to the addresses provided in Section 1 (as may be updated in writing to the other Party). Notices to Customer will be sent to the Customer address stated in this VLA or, if not stated, to its registered address (or for US based entities, its headquarters address).

26. **Definitions.** Capitalized terms that are used but not defined in this VLA have the meaning given to them in the Subscription Terms:

26.1 **Affiliate** means any person or entity directly or indirectly controlling, controlled by or under common control with a party, for so long as that relationship is in effect (including affiliates subsequently established by acquisition, merger or otherwise).

26.2 **Agreement** has the meaning given in Section 7.

26.3 **Consulting Services** means the delivery of specialized activities, such as project-based activities, or consulting services charged on, e.g., a time and materials basis.

26.4 **Effective Date** has the meaning given in Section 1.3.

26.5 **EMEA** means Europe, the Middle East and Africa.

26.6 **External Use** has the meaning given in Schedule Schedule 2 (Usage Rights).

26.7 **Participation Agreement** or **PA** means an agreement signed by an Affiliate of Customer (that is located outside the Primary Region) and the relevant SUSE entity that incorporates by reference the terms and conditions of this VLA and named Schedule(s), exhibits or attachments specifically referenced in the PA, the form of which will be provided by SUSE if applicable.

26.8 **Subscription Offering** means a subscription-based SUSE Offering for a SUSE Product.

26.9 **Subscription Terms** has the meaning given in Section 3.4.

26.10 **SUSE Offering** means SUSE branded Services in the form of Support Services, Consulting Services, Training Services, and other services offered by SUSE, each as specified in a Transaction Document.

26.11 **SUSE Marks** means SUSE's trademarks, service marks, service or trade names, logos, product names, or designations, whether registered or unregistered and whether in text or graphical format;

26.12 **SUSE Product** means: (1) a software product that Customer obtains directly from SUSE or indirectly from SUSE (for example, via a distributor or reseller), that is made available for download by SUSE on a trusted SUSE registry and for which Subscription Offerings are made available, including without limitation, all of the SUSE Products listed in the Subscription Terms; and/or (2) any other open-source software product in respect of which SUSE provides a support and maintenance offering for which SUSE charges fees, as specified at www.suse.com.

26.13 **Support Services** means the delivery of problem resolution and customer support activities by SUSE, as described in the Subscription Terms.

26.14 **Territory** means the geographic area as may be set forth in Schedule 2 (Usage Rights) or in a Transaction Document provided that Territory will not include any countries to which a SUSE Product may not be exported under U.S. or other applicable export laws or regulations, from time to time.

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26.15 **Training Services** means the delivery of onsite or remote training courses by SUSE.

26.16 **Transaction Document** means SUSE's standard ordering document, a SUSE issued quote form referencing this Agreement as accepted by Customer by the placement of an order by Customer against it, a statement of work or any other document executed between SUSE and Customer (or their Affiliates in the case of a Participation Agreement) for the sale and purchase of a SUSE Offering.

26.17 **Update** means a fix or compilation of fixes released by SUSE to correct operation defects (program bugs) in a SUSE Product.

26.18 **Upgrade** means any new version of SUSE Product which bears the same product name, including version changes evidenced by a number immediately to either the left or right of the decimal (e.g. SUSE Linux Enterprise Server 12.x to 15.x). If a question arises as to whether a product offering is an Upgrade or a new product, SUSE's opinion will prevail, provided that SUSE treats the product offering the same for its end users generally.

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Schedule 1 - Payment Metrics, Reporting & Invoicing

1. Fee Calculation	
Billing Period	Fees are payable in advance in respect of minimum increments of one year
Fee Calculation	Customer must purchase, in advance of accessing Support Services, a Subscription Offering for every Unit of a particular SUSE Product to be installed or deployed by the Customer (all being "**Deployed Units**"). Customer must ensure that at all times during the term of any valid Subscription Offering for a particular SUSE Product purchased by Customer, Customer has purchased Subscription Offerings in respect of every Deployed Unit of that SUSE Product. Customer's obligations under this section lapse, in respect of a SUSE Product, upon the expiry or termination of Customer's last valid Subscription Offering for that SUSE Product.

2. Invoicing and Payment	
Invoice Issued by SUSE	Following receipt of an order placed by Customer against the applicable Transaction Document
Payment Terms	30 days after receipt of invoice
Currency of Invoice	As specified in the invoice

Schedule 2 - Usage Rights

1. Internal Usage Rights	
Permitted Scope	Customer may use the SUSE Offerings, in each case, solely for its own Internal Use. "**Internal Use**" means: 1. the SUSE Product is deployed only on infrastructure, including standalone devices and edge infrastructure, in each case, owned or leased by the Customer, or managed by a third party exclusively on Customer's behalf; 2. that infrastructure is used for Customer's internal business purposes and neither the infrastructure nor the SUSE Offerings are, directly or indirectly, distributed or made available to third parties for their benefit; and 3. the Customer does not use that infrastructure or the SUSE Offerings to provide services directly to third parties or for the benefit of third parties.
Consequence of Termination	On the effective date of termination of the Agreement: • Customers (and all Affiliates if applicable), must cease accessing the SUSE Offerings. • Customer's rights to use SUSE Products deployed as of the effective date of termination will be governed by the EULA.

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Schedule 3 - Product Specific Terms

Part A
SUSE AI Supplemental Terms

1. General

1.1. SUSE and its affiliates make available infrastructure software and tools that are optimized for deploying and managing artificial intelligence applications. These include SUSE-branded software programs developed by SUSE and/or its affiliates; software programs developed by third parties; trade marks owned by SUSE and/or its affiliates ("**SUSE Marks**"); and documentation accompanying such software programs, which are made available for download by SUSE on a trusted SUSE registry, on the SCC or on another SUSE-authenticated portal (such software programs, compilations of software programs, trade marks and documentation made available for download, together being "**SUSE AI**").

1.2. The terms set out in this Part A ("**AI Terms**") apply to the purchase of support and/or services subscriptions for SUSE AI ("**SUSE AI Subscriptions**").

1.3. If there is a conflict between these AI Terms and any other provision of the Agreement, these AI Terms prevail.

2. Definitions and Interpretation

2.1. Capitalized terms used but not defined in these AI Terms have the meaning given to them in the VLA. The following additional definitions apply:

"**AI Act**" means Regulation (EU) 2024/1689 of the European Parliament and of the Council laying down harmonized rules on Artificial Intelligence, as amended and adopted into EU law.

"**AI Model**" means any AI model (including but not limited to machine learning models, large language models and multimodal models) that the Customer runs, hosts, uses or accesses using SUSE AI, regardless of whether that model is provided by SUSE, the Customer or a third party.

"**AI Output**" means content, data, information or anything else generated by: (a) an AI Model in response to Customer's or an End Customer's input of prompts into or via SUSE AI; or (b) Third Party Integrations with SUSE AI in response to input of prompts into or via SUSE AI or into those Third Party Integrations.

"**End Customer**" means: (a) an individual or entity that purchases or otherwise receives the SUSE AI Offerings from Customer or accesses or uses the SUSE AI Subscriptions via the SCC, for its own internal use; and/or (b) an individual or entity that receives a product or service offered by Customer which incorporates or is provided using the SUSE AI Offerings.

"**Feedback**" has the meaning given in section 6.3.

"High Risk System" means an artificial intelligence system which is "high risk", as defined by the AI Act.

"**SUSE AI**" has the meaning given to it in Section 1.1. SUSE AI is a SUSE Product for the purposes of the Agreement.

"**SUSE AI Offerings**" means SUSE AI and the SUSE AI Subscriptions.

"**SUSE AI Subscriptions**" has the meaning given to it in Section 1.2. SUSE AI Subscriptions are Subscription Offerings for the purposes of the Agreement.

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"**Third Party Integrations**" has the meaning given in Section 4.1.

"**Third Party Materials**" means any software, code, AI Models and other materials provided by a third party, including all modifications to the same.

3. Usage Rights

3.1 Customer's purchase of SUSE AI Subscriptions entitles you to receive the materials and services, including technical support services as applicable, identified in the Agreement.

3.2 Customer's rights to use SUSE AI Offerings, including any rights Customer have with respect to deploying or making the SUSE AI Offerings available to third parties are as set out in the Agreement. Subject to section 3.3, Customer's use of SUSE AI is also governed by the SUSE Combined EULA (available at https://www.suse.com/licensing/eula/).

3.3 Some components of SUSE AI are also made available by SUSE as standalone SUSE Products. Customer's use of any such SUSE Product (including as part of SUSE AI) is governed by the EULA applicable to the relevant SUSE Product (as shown at https://www.suse.com/licensing/eula/).

3.4 The usage restrictions set out in these AI Terms apply to Customer's use of SUSE AI Offerings even after expiry or termination of the Agreement. To the extent that any code forming part of SUSE AI is provided under an open source licence which does not permit SUSE to impose usage restrictions, the usage restrictions set out in these AI terms will not limit, supersede or modify Customer's rights under the relevant OSS License applicable to Customer's use of that code (but they will apply to the remainder of SUSE AI).

4. Third Parties

4.1 Third Party Software and Third Party Integrations. SUSE AI is designed to download, integrate and/or interface with certain Third Party Materials that are not made available by SUSE as part of SUSE AI (including AI Models), such Third Party Materials being the "**Third Party Integrations**". SUSE does not distribute the Third Party Integrations. These AI Terms govern Customer's use of the SUSE AI Offerings, and do not grant Customer rights to, nor govern the use of, Third Party Integrations.

4.2 Third Party Materials. Nothing in these AI Terms or in the Agreement shall operate to grant rights in, or transfer ownership in respect of, any Third Party Materials. Customer is solely responsible for obtaining, complying with, and paying all fees in respect of, all applicable licenses or service agreements with respect to such Third Party Materials including without limitation, any AI Models it chooses to deploy with SUSE AI.

5. Compliant use of SUSE AI

5.1 Prohibitions. Customer must not use the SUSE AI Offerings to: (i) spread false information or deceive others; (ii) perform or facilitate unlawful tracking, monitoring, and identification of individuals; (iii) depict a person's voice or likeness without their consent or appropriate rights. This includes unauthorized impersonation and non-consensual sexual imagery; (iv) harm or abuse minors in any way, including grooming and child sexual exploitation; (v) harass, harm, or encourage harm towards individuals or specific groups; (vi) perform a lethal function in a weapon without human authorization or control; or (vii) perform or support any other illegal or unlawful activity.

5.2 Significant Decisions. Significant decisions are those that have a significant impact on a person's fundamental rights, health, or safety. If Customer (or any End Customer) wishes to use the SUSE AI Offerings for significant decisions, Customer must: (i) evaluate the potential risks associated with each use case; and (ii) implement appropriate human oversight, testing, and other safeguards specific to Customer's (or the relevant End Customer's) use case. Examples of significant decisions include medical diagnosis, judicial proceedings, access to critical benefits, educational opportunities, employment decisions, lending/credit, and the provision of legal, financial, or medical advice.

5.3 Regulatory Compliance. SUSE AI is a tool that can assist Customer with meeting its regulatory compliance requirements but Customer is solely responsible for ensuring it takes all steps, including deploying all tools and verification processes necessary to ensure the security of each of its systems and data and the legality of its (and its End Customers') use of SUSE AI. Machine learning models, including those accessed using or incorporated into SUSE AI, generate predictions

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based on patterns in data, which means there is a possibility of generating inaccurate or inappropriate content. SUSE may make personnel available under the Agreement (or a separately entered into professional services agreement) to provide advice and guidance to the Customer with respect to the technical aspects of the Customer's or an End Customer's deployment of SUSE AI. However, SUSE does not and will not advise the Customer or an End Customer on the lawfulness of any proposed use cases or whether the technical configuration and deployment of SUSE AI (including any interactions with Customer or End Customer systems or data) is itself lawful. Without limiting the foregoing, Customer is solely responsible for: (i) assessing legality of its (and its End Customers') use of SUSE AI and ensuring that it and its End Customers have complied with all applicable laws in relation to their use of SUSE AI; (ii) the decisions made, advice given, actions taken, and failures to take action based on the use of SUSE AI; and (iii) ensuring the SUSE AI Offerings, and the systems into which they are incorporated or interface with, are configured to protect the security, confidentiality and integrity of any Customer or End Customer data consumed by, or generated by, SUSE AI. Customer represents and warrants that neither Customer nor any End Customer has relied on, nor will they rely on, any advice from SUSE as to the lawfulness or legality of Customer's or an End Customer's use or deployment of the SUSE AI Offerings.

5.4 AI Outputs. AI Output is not provided by SUSE; it is generated by Customer using SUSE AI together with Customer's prompts and any AI Models or Third Party Integrations. SUSE does not guarantee the accuracy, completeness, or timeliness of the AI Output and makes no representations or warranties of any kind, express or implied, about the completeness, accuracy, reliability, suitability, or availability of the AI Output for any purpose. The AI Output may link to other websites that are not under SUSE's control. SUSE does not control those sites' nature, content, and availability and including links does not imply a recommendation or endorse the views expressed within them.

5.5 Use and distribution of SUSE AI. Customer must: (a) if Customer wishes to deploy SUSE AI as, or otherwise incorporate SUSE AI into, a High Risk System: (i) remove all SUSE Marks and branding from SUSE AI prior to distributing it or otherwise making it available to third parties; (ii) not use not use any AI Model that has been opted-out from being changed into a High Risk System under Article 25(2) of the AI Act.

5.6. SUSE's Status. SUSE is not a provider, distributor, importer or deployer of a High Risk System by virtue of offering SUSE AI. The use of the term "distribution" in these AI Terms does not mean that SUSE is a distributor of a High Risk System for the purposes of the AI Act.

6. Feedback and Rights in AI Output

6.1 AI Outputs. Due to the nature of machine learning, the output generated by the Customer using SUSE AI and AI Models may not be unique and could be generated by other SUSE customers using SUSE AI.

6.2 Rights in AI Outputs. As between the Parties, SUSE does not claim ownership in the AI Outputs and, to the extent permitted by applicable law, SUSE agrees that Customer owns all AI Outputs.

6.3 Feedback. Customer may, but is not obligated to, provide suggestions, requests, fixes, modifications, enhancements, or other feedback regarding or in connection with the SUSE AI Offerings ("**Feedback**"). If Customer provides Feedback, Customer hereby grants SUSE its Affiliates and its designees a non-exclusive, perpetual, irrevocable, sublicensable, worldwide, royalty-free, fully paid-up and transferable license, to publicly perform, publicly display, reproduce, use, make, have made, sell, offer for sale, distribute (through multiple tiers of distribution), import, modify, create derivative works of and otherwise commercialize and exploit the Feedback, whether as part of SUSE AI or otherwise, at SUSE's sole discretion.

7. Disclaimer

7.1 SUSE PROVIDES THE SUSE AI OFFERINGS WITHOUT WARRANTY AND ON AN 'AS IS' BASIS. TO THE FULLEST EXTENT PERMITTED BY LAW, SUSE EXCLUDES AND IS NOT LIABLE FOR ANY REPRESENTATION, CONDITION, UNDERTAKING OR WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE INCLUDING, WITHOUT LIMITATION, ANY IMPLIED TERMS OR CONDITIONS AS TO THE CONDITION, PERFORMANCE, FITNESS FOR PURPOSE, SATISFACTORY QUALITY OR NON-INFRINGEMENT OF THE SUSE AI OFFERINGS WHICH ARE NOT SET OUT IN THESE AI TERMS. SUSE DOES NOT WARRANT THAT THE SUSE AI OFFERINGS WILL BE WITHOUT DEFECT OR ERROR OR MEET ANY CUSTOMER OR END CUSTOMER REQUIREMENTS OF ANY KIND.

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8. Indemnity & Liability

8.1 **Indemnity.** The indemnification obligations in Section 19 of the VLA shall not apply to the SUSE AI Offerings and the following provisions of this Section 8 shall apply instead. Subject to Section 8.3, SUSE will indemnify You from and against damages, costs and expenses (including reasonable attorneys' fees) finally awarded against You (or approved by SUSE in a settlement) in favor of a third party, resulting from a claim by that third party alleging that the SUSE AI Offerings infringes the trademarks or copyrights of such third party. In order to benefit from the indemnity in this Section, You must notify SUSE promptly, but no later than ten (10) days of receipt of the claim, give SUSE control of the defense and related settlement negotiations, and provide SUSE with the reasonable assistance (at SUSE's cost) in defending the claim. You will make best efforts to mitigate any losses and consequences of an infringement to the extent possible.

8.2 **Repair and Replace**. If a SUSE AI Offering is held to infringe and its use is prohibited or if, in SUSE's reasonable opinion, is likely to become the subject of an infringement claim, You will permit SUSE, at SUSE's option and expense, to (a) procure for you the right to continue to use the SUSE AI Offering, or (b) replace or modify it so that it becomes non-infringing and has the same or additional functionality and comparable or improved performance characteristics, provided that if the measures at (a) and/or (b) are not available on a basis that SUSE finds commercially reasonable, SUSE may terminate the applicable SUSE AI Offering without further liability and, upon Your discontinued use of the infringing SUSE Software, refund to You the amount paid for the unused portion of the term of the SUSE AI Offering as of the effective date of said termination.

8.3 **Exceptions to SUSE's Indemnification Obligation.** SUSE will have no obligation of defense or indemnity: (a) if at any time You were in breach of the Subscription Agreement as amended by these AI Terms; (b) in respect of any claim arising after Your last active SUSE AI Subscription has expired or if You have never had a valid SUSE AI Subscription; or (c) to the extent the infringement claim arises from: (i) Your designs, specifications or instructions; (ii) use of a version other than the current release of SUSE AI, if the infringement would have been avoided by use of the current release; (iii) Your failure to promptly implement a patch provided by SUSE, if the infringement would have been avoided by use of that patch; (iv) a modification of SUSE AI not requested or authorized in writing by SUSE; (v) use of SUSE AI with non-SUSE software, equipment, or data, other than as specified or approved by SUSE in writing; (vi) the furnishing to You of any information, service, or technical support by a third party; (vii) use of the SUSE AI Offerings by or in respect of End Customers; (viii) use of Third Party Integrations; or (ix) AI Outputs.

8.4 **Limitation & Exclusions.** SUSE's obligations under this Section 8 are subject to, and count towards, the limitations of liability and exclusions set out in the VLA

8.6 **Sole Remedy.** This Section 8 states the exclusive obligation of SUSE and Customer's sole remedy regarding any claim of infringement or misappropriation of any third party's intellectual property rights with respect to SUSE AI.

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Part B
SUSE Observability License & Supplement Terms

1. **General**
   1.1. SUSE makes available observability software which includes: software programs developed by SUSE and/or its affiliates; trade marks owned by SUSE and/or its affiliates; and documentation accompanying such software programs (such software programs, compilations of software programs, trade marks and documentation together being "**SUSE Observability**").
   1.2. This Part B sets out the license terms on which Customer may download and use SUSE Observability ("**Observability License**"). For clarity, the SUSE End User License Agreements available at https://www.suse.com/licensing/eula/ do not apply to SUSE Observability.
   1.3. Customer may not download or use SUSE Observability unless and until it has purchased (and have one or more current) subscriptions entitling it to receive support for SUSE Rancher Prime (each a "**Rancher Prime Subscription**").
   1.4. Some features of SUSE Observability are available free of charge to customers who have a Rancher Prime Subscription (such included observability features being "**SUSE Rancher Prime Observability**") and some features of SUSE Observability are available, at an additional fee, as a paid add-on SUSE Rancher Prime Subscriptions (such chargeable observability features being "**SUSE Observability Platform Optimization Add On**"). Some provisions of this Obserbability License apply only to SUSE Rancher Prime Observability, some only to SUSE Observability Platform Optimization Add On and some to both sets of software. A provision that applies to both products will refer to "SUSE Observability".
   1.5. Any add-on, extension, update, mobile application, module, adapter or support release to SUSE Observability that Customer may download or receive that is not accompanied by another license agreement is governed by this Observability License. Nothing in this Observability License amends Customer's license rights to use any other SUSE Product that is governed by a separate license.

2. **License Terms**
   2.1. **License of SUSE Rancher Prime Observability**. Subject to Section 2.4 and to Section 2.5, SUSE grants Customer a non-exclusive, revocable, non-transferable, non-sublicensable, license to install and use SUSE Rancher Prime Observability for as long as Customer continues to hold a valid Rancher Prime Subscription (the "**Subscription Term**"), for the purposes that are expressly permitted by the Agreement and its Schedules.
   2.2. **License of SUSE Observability Platform Optimization Add On.** Subject to Section 2.4 and to Section 2.5, upon payment of the license and support fees for SUSE Observability Platform Optimization Add On (the "**Add-On Fees**"), SUSE grants Customer a non-exclusive, revocable, non-transferable, non-sublicensable, license to install and use Prime Optimization Add-On for the Subscription Term, for the purposes that are expressly permitted by the Agreement and its Schedules.
   2.3. For clarity, the SUSE End User License Agreements available at https://www.suse.com/licensing/eula/ do not apply to SUSE Observability.
   2.4. The licenses in Section 2.1 and 2.2 shall not be granted unless Customer: (a) has one or more active Rancher Prime Subscriptions; and (b) is in compliance with all of its obligations under the Agreement. The licenses granted in Sections 2.1 and 2.2 will terminate immediately if condition (a) and/or condition (b) ceases to be met, or if Customer is in breach of this Observability License.
   2.5. Customer shall not (and shall not permit its employees, agents, contractors or any third party to): (a) use SUSE Observability other than as specified in this Observability License without the prior written consent of SUSE; (b) sub-license, assign or novate the benefit or burden of this Observability License in whole or in part; (c) copy, adapt, reverse engineer, decompile, disassemble, modify, adapt or make error corrections to SUSE Observability in whole or in part except to the extent that any reduction of SUSE Observability to human readable form (whether by reverse engineering, decompilation or disassembly) is necessary for the purposes of integrating the operation of SUSE Observability with the operation of other software or systems used by Customer, and Customer has, prior to undertaking such reduction, provided SUSE with the opportunity to conduct the work within a reasonable period subject to payment of SUSE's reasonable costs; (e) export SUSE Observability in violation of US laws or any other

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applicable export control laws, (f) use SUSE Observability for any prohibited use, such as but not limited to nuclear technology applications, missile, or other military guidance systems and biological weaponry, (g) alter or remove any of SUSE's or its licensors' copyright or proprietary rights notices or legends appearing on or in SUSE Observability; (h) modify, distribute or otherwise use SUSE Observability in any manner that causes any portion of SUSE Observability that is not already subject to an open source license to become subject to the terms of any open source license; or (i) use SUSE Observability in a manner that breaches any applicable laws.

2.6. Customer shall not circumvent, or attempt to circumvent, any license management, security devices, access logs, or other measures provided, or permit or assist any person or any third party to do the same.

2.7. Customer may make such backup copies of SUSE Observability for its lawful use.

3. **Ownership**

3.1. SUSE Observability is licensed, not sold. No title to or ownership of SUSE Observability is transferred to Customer. SUSE and/or the third party licensors retain all right, title and interest in and to all intellectual property rights in SUSE Observability.

4. **SUSE Marks**

4.1. Other than as set out in Section 2, no other right or license, express or implied, is granted under this Observability License to use any SUSE Mark, trade name or service mark of SUSE or its affiliates or licensors.

5. **Interfaces**

Customer is solely responsible for procuring, installing, licensing, configuring, securing and maintaining Customer's systems, hardware, networks and environment on which SUSE Observability is installed and/or that it monitors or observes (the "**Customer System**"). Customer is solely responsible for selecting, implementing, activating, deactivating, and configuring each of the connections between each interface between the Customer System and SUSE Observability (the "**Interfaces**") and configuring SUSE Observability, including with respect to how they interoperate with the Customer System and the Interfaces.

6. Data Integrity

Customer has sole responsibility for the legality, reliability, accuracy and quality of all data it provides to SUSE, which shall include any data Customer enters into SUSE Observability.

7. Delivery and Installation

SUSE will make SUSE Observability and license keys available for download at www.suse.com.

8. Integrations with Third Party Products

8.1. Customer acknowledges that SUSE Observability may enable or assist Customer to access the website content of, correspond or integrate or interface with, and purchase products and services from, third parties via third-party data websites (each a "**Third Party Site**"), and that Customer does so solely at Customer's own risk. Whilst those third party products and services are intended to be complementary to the SUSE Observability and enhance Customer's overall experience of SUSE Observability, SUSE makes no representation, warranty or commitment and shall have no liability or obligation whatsoever in relation to: (a) the content, output or use of any such Third Party Site, including the accuracy, reliability or integrity of any data sent from or to the Third Party Site; (b) any transactions completed, and any contract entered into by Customer, with the operator of such Third Party Site; (c) or the functionality or performance of the Third Party Site or, except as specified in Section 4.2, any integration or interface between the Third Party Site and either the Customer System or SUSE Observability. Any contract entered into and any transaction completed via any Third Party Site is between Customer and the relevant third party operator, and not SUSE. SUSE does not endorse or approve any Third Party Site nor the content of any Third Party Site.

8.2. SUSE does not provide support services or any other support for Third Party Sites or any integrations or interfaces with the Third Party Sites. SUSE will use reasonable efforts to assist Customer with finding a workaround for incidents arising with the "**Supported Integrations**" (being the integrations between SUSE Observability and the third party services listed at https://docs.stackstate.com/ from time to time). Such assistance will comprise consulting publicly

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available knowledge articles and community resources. SUSE will not provide any technical coding or engineering support in respect of the Supported Integrations, and Customer is responsible for obtaining technical support for those components and tools.

9. License Term

9.1. This Observability License becomes effective at the time Customer downloads SUSE Observability.

9.2. This Observability License shall automatically terminate upon the termination or expiry of the Agreement or the Rancher Prime Subscriptions, whichever occurs first. Either party may terminate this Observability License by written notice to the other party if: (a) the other party materially breaches this Observability License and does not cure the breach within thirty (30) days after written notice; or (b) the other party becomes the subject of a petition in bankruptcy or any other proceeding relating to insolvency, receivership, liquidation or assignment for the benefit of creditors. In addition, SUSE may, at its option and without limiting its other remedies, suspend (rather than terminate) your license to use SUSE Observability if Customer breaches this Agreement until the breach is remedied.

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